



**U.S. EQUAL EMPLOYMENT OPPORTUNITY COMMISSION
Washington, D.C. 20507**

LIMITED SOURCE JUSTIFICATION & BRAND NAME DECISION

1. Identification of Agency and Contracting Activity:

Agency: U.S. Equal Employment Opportunity Commission (EEOC)
Requiring Activity: Office of Information Technology (OIT)

Contracting Activity: EEOC – Acquisition Services Division (OCFO-ASD)
Requisition Number: [REDACTED]

2. Nature and/or description of the action being approved.

The objective of this procurement is to renew Public Portal -Portal / Scheduling Licensing, Hosting and Support contract for the period from [REDACTED] via Opexus (AINS Inc.)

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

OCIO is seeking to renew existing Public Portal -Portal / Scheduling Licensing, Hosting and Support

The estimated cost for acquisition is [REDACTED] 287,046.64

4. Identification of the justification rationale (see 8.405-6(a) and, (b) and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service.

☒ (1) Only one source is capable of responding due to the unique or specialized nature of the work;

☐ (2) The new work is a logical follow-on to an original Federal Supply Schedule order provided that the original order was placed in accordance with the applicable Federal Supply Schedule ordering procedures. The original order must not have been previously issued under sole source or limited source procedures;

☒ (3) The item is peculiar to one manufacturer. A brand name item, whether available on one or more schedule contracts, is an item peculiar to one manufacturer; or

☐ (4) An urgent and compelling need exists and following the ordering procedures would result in unacceptable delays.

5. A determination by the ordering activity contracting officer that the order represents the best value consistent with 8.404(d).

Original selection of the Public Portal system was a competitive process where multiple ITSM vendors submitted technical specifications and cost information to be evaluated by the EEOC.

6. Description of the market research conducted among schedule holders and the results or a statement of the reason market research was not conducted.

Extensive market research was done prior to awarding the original task order.

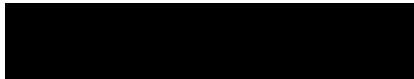
7. Other facts supporting the justification.

Brand Name Decision: OPEXUS (Previously AINS and has been providing custom public facing case management portal to the EEOC for over six years. Renewal is needed for continuity of these critical services used by EEOC mission applications(Public Portal)

8. A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made.

In the event that additional or different requirements become known, every effort will be expended to obtain these services through competitive means at the conclusion of this delivery. EEOC will determine if these services are required past the Base and Four (4) Option Year and if required, OIT will conduct new market research to evaluate the available feature set in a rapidly changing marketplace, followed by a competition for an additional single year or multi-year contract award.

Technical Certification Statement: By my signature below, I hereby certify that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for limited sources) and which form a basis for the justification is complete and accurate:



Technical Point of Contact Signature



Date

Technical Point of Contact

Name of Office

Ordering Activity Contracting Officer Certification Statement: By my signature below, I hereby certify that the justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer's Signature



Date



Contracting Officer
Office of the Chief Financial Officer
Acquisition Services Division

